

STATE OF NEW YORK

10619--A

IN ASSEMBLY

March 13, 2026

Introduced by M. of A. BERGER -- read once and referred to the Committee on Mental Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to establishing a certified community behavioral health clinic public awareness campaign

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The mental hygiene law is amended by adding a new section
2 36.08 to read as follows:

3 § 36.08 Certified community behavioral health clinic public awareness
4 campaign.

5 (a) The commissioner of the office of mental health, in consultation
6 with the commissioner of the office of addiction services and supports,
7 the commissioner of the office of children and family services, the
8 commissioner of the office for people with developmental disabilities,
9 and the commissioner of the department of health shall develop and
10 implement a statewide public awareness campaign to educate the general
11 public regarding certified community behavioral health clinics estab-
12 lished pursuant to section 36.04 of this article.

13 (b) Such campaign may utilize public forums, social media, and mass
14 media, including but not limited to internet, radio, and print advertis-
15 ing, and shall include posting of materials and information on the
16 websites of the office of mental health and the office of addiction
17 services and supports.

18 (c) The campaign shall be designed to:
19 1. educate the public regarding the services provided by certified
20 community behavioral health clinics, including mental health and
21 substance use disorder services, case management services, and access to
22 crisis services;

23 2. inform individuals how to access such services provided by certi-
24 fied community behavioral health clinics; and

25 3. reduce stigma associated with seeking behavioral health treatment.
26 (d) The commissioner of the office of mental health shall require
27 facilities licensed pursuant to article thirty-one of this chapter, and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD15046-03-6

1 the commissioner of the office of addiction services and supports shall
2 require providers certified pursuant to article thirty-two of this chap-
3 ter to make available to patients educational materials developed pursu-
4 ant to this section regarding certified community behavioral health
5 clinics. The commissioner of the department of health shall require
6 general hospitals licensed pursuant to article twenty-eight of the
7 public health law that operate psychiatric inpatient, outpatient, or
8 emergency services to make such materials available. Such materials may
9 be distributed electronically, provided in writing, or posted conspicu-
10 ously within provider facilities, as determined by the applicable
11 commissioner.

12 § 2. This act shall take effect on the one hundred eightieth day after
13 it shall have become a law. Effective immediately, the addition, amend-
14 ment and/or repeal of any rule or regulation necessary for the implemen-
15 tation of this act on its effective date are authorized to be made and
16 completed on or before such date.